

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF TUOLUMNE
TENTATIVE RULINGS- September 8, 2026**

HEARING DATE: September 9, 2026
HEARING TIME: 1:30 p.m.
DEPT.: Two (2)
JUDICIAL OFFICER: Honorable Sarah J. Carrillo

Case No.: CV68545
Case Title: Mark Rose vs. FCA US et al
Case Type: Breach of Contract Warranty/Breach of Contract
Hearing Type: Defendant FCA's Demurrer to Plaintiff's First Amended Complaint

Background

This is a lemon law case arising from Plaintiff Mark Rose's 2017 purchase of a 2018 Ram 2500.

On February 14, 2025, Plaintiff filed suit against Defendants FCA US, LLC, Sonora Chrysler Dodge Jeep Ram and DOES 1 through 10, in San Diego Superior Court for:

1. Violation of Subdivision (D) of Civil Code section 1793.2 against Defendant FCA
2. Violation of Subdivision (B) of Civil Code section 1793.2 against Defendant FCA
3. Violation of Subdivision (A)(3) of Civil Code section 1793.2 against Defendant FCA
4. Breach of Implied Warranty of Merchantability (Civil Code sections 1791.1, 1794 and 1795.5) against Defendant FCA
5. Negligent Repair as to Defendant Sonora CDJR
6. Fraudulent Inducement Concealment against Defendant FCA

On June 6, 2025, Defendant FCA filed a Demurrer to Plaintiff's Complaint.

On March 2, 2026, Plaintiff filed a First Amended Complaint asserting the same six causes of action as set forth in the Complaint.

On March 13, 2026, the Honorable Mark T. Cuma issued a tentative ruling finding the venue was not proper and on April 17, 2026, the action was transferred from the San Diego Superior Court to Tuolumne County Superior Court.

On August 18, 2026, Defendant FCA filed the instant demurrer.

On August 27, 2026, Plaintiff filed an opposition.

On September 3, 2026, Defendant FCA filed a reply.

Discussion:

1. Defendant demurs to the first and second causes of action for violations of the Song-Beverly Act as being time-barred pursuant to Code of Civil Procedure section 871.20 and 871.21.

Code of Civil Procedure section 871.21 provides that an action covered by the section shall be commenced within one year after the expiration of the applicable express warranty and shall not be brought later than six years after the date of original delivery. It further provides those time periods shall be tolled by applicable Civil Code requirements set forth in 17932.22.

FCA asserts that because Civil Code sections 871.20 and 871.21 went into effect on January 1, 2025, and plaintiff filed his lawsuit on February 14, 2025, the causes of action are untimely.

Plaintiff alleges he began noticing defects with the vehicle in 2018 and repeatedly took the vehicle to an authorized dealer for various repairs. Plaintiff alleges he took the vehicle in for repair on 2/2/18, 3/22/18, 5/10/22 and 1/20/2025. He alleges he could not have discovered the defects because each time he took the vehicle in for repair he was informed the vehicle was repaired. He alleges he only discovered the continued defects shortly before filing the lawsuit.

Generally, statutes operate prospectively and will not be given a retrospective operation that interferes with antecedent rights unless such is the unequivocal and inflexible import of the terms of the statute and the manifest intent of the Legislature. (*Myers v. Philip Morris Companies, Inc.* (2002) 28 Cal.4th 828, 840.) Further, the laws applicable to the opt-in process were amended by Senate Bill No. 26 and became fully effective on July 1, 2025. The case was filed prior to the July 1, 2025, fully effective date of Sections 871.20 and 871.21. Additionally, the Court does not find any express language in the code indicating a legislative intent to apply the law retroactively. (*Landgraf v. USI Film Products* (1994) 511 U.S. 244, 270.)

Even assuming, arguendo, that Civil Code sections 871.20 and 871.21 apply to this action, FCA cannot establish from the face of the Complaint that Plaintiff's claims are

untimely. A plaintiff may bring a breach of express warranty claim within four years after the claim accrues. (Cal. Com. Code, § 2725, subds. (1)-(2).) In the Song-Beverly context, a warranty claim generally accrues when the plaintiff discovers, or reasonably should have discovered, the breach. (*Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 213-214.) A claim based upon a warranty of future performance accrues upon discovery of the breach. (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 642, 648-649.)

Here, Plaintiff expressly alleges that he began experiencing problems with the subject vehicle in 2018 and repeatedly presented the vehicle to an authorized FCA dealer for repair, including on February 2, 2018, March 22, 2018, May 10, 2022, and January 20, 2025. Plaintiff further alleges that, on each occasion, he was informed that the vehicle had been repaired. Plaintiff alleges he did not discover the underlying defects remained until shortly before filing this action on February 14, 2025. These allegations, accepted as true on demurrer, do not establish as a matter of law that Plaintiff discovered, or reasonably should have discovered, the actionable breach more than four years before filing suit.

Indeed, where the allegations leave the date of accrual uncertain, a statute-of-limitations defense ordinarily cannot be resolved on demurrer. “A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred.” (*Committee for Green Foothills v. Santa Clara County Board of Supervisors* (2009) 48 Cal.4th 32, 42.) Thus, a demurrer based on the statute of limitations may be sustained only where the untimeliness of the action “clearly and affirmatively” appears from the face of the complaint and matters properly subject to judicial notice. (*Coalition for Clean Air v. City of Visalia* (2012) 209 Cal.App.4th 408, 420.) Moreover, on demurrer, the Court must liberally construe the allegations of the complaint and draw reasonable inferences in Plaintiff’s favor. (*Perez v. Golden Empire Transit Dist.* (2012) 209 Cal.App.4th 1228, 1238.)

Accordingly, even if Sections 871.20 and 871.21 were applicable to this action, FCA cannot establish at the pleading stage that Plaintiff’s claims are time-barred. Plaintiff’s allegations concerning his repeated repair visits, FCA’s representations that the vehicle had been repaired, and his subsequent discovery of the continuing defects at minimum create an issue concerning when the alleged breach was discovered or reasonably should have been discovered. That issue cannot properly be resolved against Plaintiff on demurrer.

Therefore, the demurrer to the 1st and 2nd causes of action is OVERRULED.

2. Defendant demurrers to the third cause of action for violation of the Song-Beverly Act arguing it is insufficiently pled.

The Court finds this cause of action sufficiently pled. Plaintiff alleges the Defendant failed to make sufficient service literature and replacement parts available to its authorized service and repair facilities to effect repairs during the express warranty period. He also alleges that Defendant's representatives failed to service and/or repair the Vehicle to conform to the applicable warranties. Taken together, these allegations are sufficient to state a claim for violation of Civil Code section 1793.2 subdivision (a)(3).

At the pleading stage, Plaintiff need not identify what parts or literature Defendant failed to provide, as Defendant has superior knowledge of what parts and literature it made available. (*Okun v. Superior Court* (1981) 29 Cal.3d 442, 458 ("Less particularity is required when it appears that defendant has superior knowledge of the facts, so long as the pleading gives notice of the issues sufficient to enable preparation of a defense.")) The rules of pleading require only ultimate facts be alleged; evidentiary facts supporting the allegation of ultimate fact need not be pleaded. (*McKell v. Washington Mut., Inc.* (2006) 142 Cal.App.4th 1457, 1469.)

Accordingly, the demurrer is OVERRULED.

3. Defendant demurs to the fourth cause of action for breach of implied warranty as being time-barred.

The implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale. (*Mexia v. Rinker Boat Co., Inc.*, (2009) 174 Cal.App.4th 1297 at p. 1304; "Undisclosed latent defects ... are the very evil that the implied warranty of merchantability was designed to remedy." (*Mexia*, supra, 174 Cal.App.4th at p. 1305 (quoting *Willis Mining, Inc. v. Noggle* (1998) 235 Ga.App. 747, 749).))

Where the defect is discovered after the warranty period, a plaintiff may still prevail by demonstrating that the defect was present at the time of purchase but remained latent until the date of discovery. (*Mexia*, supra, 174 Cal.App.4th at p. 1301 (duration of implied warranties "does not create a deadline for discovering latent defects or for giving notice to the seller".)) Otherwise, the breach occurs when the latent defect is discovered by the buyer.

Plaintiff alleges defect history, partial repair history and alleges that he could not have discovered the defects until shortly before filing the lawsuit.

The demurrer is OVERRULED.

4. Defendant demurs to the sixth cause of action for fraudulent inducement concealment arguing it is time-barred and fails to state sufficient facts to constitute a cause of action.

The statute of limitations for fraud is three years. (Code Civ. Proc., § 338, subd. (d).) However, a cause of action for fraud does not accrue “until the discovery, by the aggrieved party, of the fact constituting the fraud or mistake.” (Ibid.) The limitations period begins once the plaintiff has actual or constructive notice or information of circumstances to put a reasonable person on inquiry. (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1110-1111.)

“Fraudulent inducement is a viable tort claim under California law. “The elements of fraud are (a) a misrepresentation (false representation, concealment, or nondisclosure); (b) scienter or knowledge of its falsity; (c) intent to induce reliance; (d) justifiable reliance; and (e) resulting damage. [Citations.] Fraud in the inducement is a subset of the tort of fraud. It ‘occurs when “ ‘the promisor knows what he is signing but his consent is induced by fraud, mutual assent is present and a contract is formed, which, by reason of the fraud, is voidable.’ ” ’ ” (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294–295 , 37 Cal.Rptr.3d 364; accord, *Geraghty v. Shalizi* (2017) 8 Cal.App.5th 593, 597 , 215 Cal.Rptr.3d 61.” (*Dhital v. Nissan North America, Inc.*, (2022) 84 Cal.App.5th 828, at p. 838-839.)

In the context of consumer allegations that a car manufacturer concealed known defects, a cause of action for fraudulent concealment/inducement is sufficiently alleged against the manufacturer where: “vehicles (including the one plaintiffs purchased) were defective; [manufacturer] knew of the defects and the hazards they posed; [manufacturer] had exclusive knowledge of the defects but intentionally concealed and failed to disclose that information; [manufacturer] intended to deceive plaintiffs by concealing known [defects]; plaintiffs would not have purchased the car if they had known of the defects; and plaintiffs suffered damages in the form of money paid to purchase the car.” (*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 844.)

Here, plaintiff alleged learning of Defendant FCA's misconduct shortly before filing the complaint. He further alleges the vehicle was defective, defendant knew the engine was defective, defendant had exclusive knowledge of the defects, that defendant was under a duty to disclose the defect and intentionally concealed the defect, that had defendant disclosed the defect it would have caused plaintiff to not purchase the vehicle, and by purchasing the vehicle, plaintiff was harmed. At this stage in the pleadings, plaintiff has alleged facts sufficient to constitute a fraud cause of action.

Defendant also demurs to the plaintiff's claim that the fraud statute has been tolled by the class action tolling doctrine. As defendant points out, plaintiff pled no facts to support its assertion that a class action exists that would have put defendants on notice. The Court agrees with defendant, however “... as long as a complaint consisting of a single cause of action contains any well-pleaded cause of action, a demurrer must be

overruled even if a deficiency pleaded claim is lurking in that cause of action as well.”
(*Fox v. JAMDAT Mobile, Inc.* (2010) 185 C.A. 4th 1068, 1078.)

The FAC alleges all of the elements as required by *Dhital*, therefore the demurrer is
OVERRULED.

5. Defendants requests the Court strike the punitive damages claim asserting
plaintiff fails to plead facts sufficient to support a punitive damages claim and that
as a matter of law the Plaintiff may not recover punitive damages based upon a
Song-Beverly claim.

Based on the court's decision to OVERRULE the demurrer, the court denies the motion
to strike the prayer for punitive damages.

Defendant shall have 10 days to answer.